other merchandise carried in either such case shall be listed on a manifest as provided for by paragraph (b) of this section, which shall be filed with the collector when the arrival is reported.[1] A vessel of less than 5 net tons arriving in the United States from a contiguous country otherwise than by sea is not subject to the provisions of sections 433, 434, 435, or 448 (a), Tariff Act of 1930, and no report of the arrival of such a vessel is required if it is not carrying any baggage or other merchandise.

c. Footnote 1, appended to paragraph (a) is amended to read as follows:

[1] For the reporting, entry, and clearance requirements applicable to vessels of less than 5 net tons which arrive in the United States from, or depart for, a contiguous country by sea, and to vessels of 5 net tons or over, whether arriving or departing by sea or otherwise, see §§ 4.2, 4.3, and 4.60 of this chapter.

d. The fourth sentence of paragraph (b) is deleted and the following substituted therefor: "In all other cases the manifest required from a vehicle, or from a vessel of less than 5 net tons arriving in the United States from a contiguous country otherwise than by sea, shall be on customs Form 7533, except that when baggage arrives in the United States in the actual possession of a traveler, his declaration therefor shall be accepted in lieu of a manifest. For manifesting required in the case of any vessel which is required to make entry, see § 4.7 (a) of this chapter.

e. The parenthetical matter at the end of paragraph (d) is transferred to the end of paragraph (c) and the remainder of paragraph (d) is deleted.

(R. S. 161, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 1624)

6. Section 5.2 of the Customs Regulations is amended to read as follows:

§ 5.2 *Vessels and vehicles; unlading and lading; permits; overtime services.*[2]

(a) No passenger or merchandise (including baggage) shall be landed or discharged at any time from any vessel of less than 5 net tons which arrives from a contiguous country, by sea or otherwise, or from a vehicle which arrives from such a country, until permission therefor has been granted by the customs officer to whom the arrival of the vessel or vehicle has been duly reported. The collector may require that the permission and an application therefor be in writing on customs Form 3851, appropriately modified for the purpose. The foregoing requirement shall not apply to the unlading of passengers from any such vessel arriving from a contiguous country otherwise than by sea when such vessel is not carrying baggage or other merchandise.

(b) No lading of merchandise requiring customs supervision on any vessel or vehicle departing for a contiguous country by any route, and no unlading of any passenger or merchandise (including baggage) from any vessel of less than 5 net tons or vehicle arriving from a contiguous country by any route, shall be done at night or on a Sunday or holiday until the collector has granted an application for a special license therefor and a request on customs Form 3853 for any reimbursable overtime services required to be performed by customs employees. The foregoing requirement shall not apply to the unlading of passengers from any such vessel arriving from a contiguous country otherwise than by sea when such vessel is not carrying baggage or other merchandise. The application for the license shall be in writing on customs Form 3851, except that in the case of vessels of less than 5 net tons and vehicles not engaged in the carriage of persons or property for hire, the collector in his discretion and under such conditions as he deems advisable may allow the application to be made orally. In the cases of the vessels and vehicles last mentioned, the collector may authorize his customs inspectors to grant oral permission for unlading at night or on a Sunday or holiday, and to grant requests on Form 3853 for overtime services.

(c) A request for reimbursable overtime services shall not be approved under the provisions of the preceding paragraph unless a bond on customs Form 7567, 7569, or 7597 shall have been filed, except that, when a carrier has on file a bond on customs Form 3587, no further bond shall be required of such carrier solely by reason of the unlading or lading at night or on a Sunday or holiday of merchandise (including baggage) covered by an entry for transportation in bond.

(d) A permit or special license required by this section may be issued on a term basis in the manner and under such of the conditions prescribed in § 4.30 (f) or (g) of this chapter as are applicable.

(Secs. 448, 450, 46 Stat. 714, 715, sec. 451, 46 Stat. 715, as amended, secs. 452, 453, 454, 459, 46 Stat. 715, 716, 717, as amended; 19 U. S. C. 1448, 1450, 1451, 1452, 1453, 1454, 1459)

(Sec. 624, 46 Stat. 759; 19 U. S. C. 1624)

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: February 5, 1954.

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 54-5757; Filed, July 27, 1954; 8:48 a. m.]

[2] For the requirements with respect to the unlading or lading of vessels not within the purview of this section, see § 4.30 of this chapter.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 983]

UTAH

RESERVING PUBLIC LAND FOR USE OF UNITED STATES ATOMIC ENERGY COMMISSION

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Utah are hereby withdrawn from all forms of appropriation under the public-land laws including the mining but not the mineral-leasing laws, and reserved for the use of the United States Atomic Energy Commission:

SALT LAKE MERIDIAN

T. 36 S., R. 18 E.,
Secs. 3, 4, 9, 10, 13, 14, 23, 24, 25, 26.
T. 35 S., R. 18 E.,
Secs. 34 and 35, unsurveyed.
T. 36 S., R. 19 E.,
Secs. 17, 18, 19, and 20, unsurveyed.
T. 35 S., R. 19 E.,
Secs. 1 to 4, inclusive, 9 to 16, inclusive, and 21 to 24, inclusive, unsurveyed.
T. 35 S., R. 20 E.,
Secs. 6, 7, 8, 17, 18 and 19.

The area described contains approximately 24,320 acres.

This order shall be subject to the provisions of existing withdrawals and shall take precedence but not otherwise affect Departmental Order of June 22, 1935 establishing Utah Grazing District No. 6.

Notice of the withdrawal was published on February 4, 1954, in 19 F. R. 659.

ORME LEWIS,
Assistant Secretary of the Interior.

JULY 22, 1954.

[F. R. Doc. 54-5741; Filed, July 27, 1954; 8:45 a. m.]

[Public Land Order 984]

ALASKA

REVOKING EXECUTIVE ORDER NO. 1920 OF APRIL 21, 1914. PARTIALLY REVOKING EXECUTIVE ORDERS OF MAY 4, 1907 AND AUGUST 21, 1897, AND EXECUTIVE ORDERS NOS. 1194 OF APRIL 26, 1910 AND 5289 OF MARCH 4, 1930

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 1920 of April 21, 1914, reserving certain public lands in Alaska for use of the U. S. Bureau of Education and certain Alaskan natives who might reside thereon, which was partially revoked by Executive Order No. 4421 of April 17, 1926, is hereby revoked so far as it affects the following-described lands:

Beginning at Corner No. 1 at the S. E. corner of the old school Survey, in the town of Bayview located on Klawak Inlet on west coast of Prince of Wales Island, a hemlock post 5 inches square and 2 feet high set in ground at edge of street line and scribed U. S. P. S. Corner 1; thence N. 20° E. 400 feet to Corner No. 2; thence N. 70° W. 125 feet to Corner No. 3; thence S. 20° W. 240 feet to Corner No. 4; thence N. 70° W. 15 feet to Corner No. 5; thence S. 20° W. 160 feet to Corner No. 6; thence S. 70° E. 140 feet to Corner No. 1 to the place of beginning, containing approximately 1.20 acres.

A portion of the described land is withdrawn for a school reserve by the Executive Order of May 4, 1907, as defined by U. S. Survey No. 923. The remaining lands are within the boundaries of the townsite of Klawock, and are subject to disposal only under applicable townsite laws.